

STATE OF NEW YORK

9470--B

IN ASSEMBLY

January 6, 2026

Introduced by M. of A. O'PHARROW, TAPIA, LUCAS, BERGER, BURROUGHS, HOOKS, DURSO, HYNDMAN, NORBER, SOLAGES -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "Edeedson 'Joshy' Cine, Jr. Transparency Act" requiring the release of certain surveillance footage to law enforcement agencies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Edeedson 'Joshy' Cine, Jr. Transparency Act".

3 § 2. The general business law is amended by adding a new section 393-g
4 to read as follows:

5 § 393-g. Release of surveillance footage. 1. Definitions. For the
6 purposes of this section, the following terms shall have the following
7 meanings:

8 a. "Surveillance footage" means video recordings obtained through
9 security cameras located in public areas or private entities that may be
10 relevant to New York state law enforcement investigations.

11 b. "New York state law enforcement agency" shall have the same meaning
12 as in subdivision four of section 705.00 of the criminal procedure law.

13 2. Release of surveillance footage. a. Any person, firm or corporation
14 doing business in this state that possesses surveillance footage rele-
15 vant to an ongoing New York state law enforcement investigation into a
16 felony offense believed to have been committed on the premises of such
17 business shall immediately release such surveillance footage to a law
18 enforcement agency upon receipt of a formal written request by the New
19 York state law enforcement agency. Such written request shall provide
20 details as to the relevance of the surveillance footage to the specific
21 New York state law enforcement investigation.

22 b. When a person, firm or corporation doing business in this state is
23 aware, or should reasonably be expected to be aware, that a felony

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 offense has been or may have been committed on the premises of such
2 business or when a written request for release of surveillance footage
3 to a New York state law enforcement agency is submitted to a person,
4 firm or corporation doing business in this state pursuant to paragraph a
5 of this subdivision, such person, firm or corporation shall take reason-
6 able measures to ensure that such surveillance footage is not recorded
7 over, deleted or otherwise destroyed.

8 c. No retaliatory action shall be taken by a person, firm or corpo-
9 ration doing business in this state against any employee for complying
10 with a written request by a New York state law enforcement agency for
11 release of surveillance footage pursuant to paragraph a of this subdivi-
12 sion, regardless of any policy of such business regarding the retention
13 or release of such surveillance footage.

14 3. Exceptions to requirement to immediately release surveillance
15 footage. A person, firm or corporation doing business in this state
16 which has received a written request by a New York state law enforcement
17 agency for the release of surveillance footage pursuant to paragraph a
18 of this subdivision may:

19 a. Upon request by such person, firm or corporation, be granted a
20 reasonable amount of time to allow counsel for such person, firm or
21 corporation to review the request for the release of surveillance
22 footage and any applicable laws relating to such request or surveillance
23 footage prior to releasing such surveillance footage; provided, however,
24 that for the purposes of this paragraph, a reasonable amount of time
25 shall not be deemed to exceed twenty-four hours; and/or

26 b. Seek a court order to delay the release of such surveillance
27 footage in cases where the release of surveillance footage might incrim-
28 inate such business or violate individual privacy rights.

29 4. Penalties. Any person, firm or corporation doing business in this
30 state that fails to comply with the requirements of this section shall
31 be subject to penalties, which may include, but need not be limited to,
32 finest of up to one hundred thousand dollars per incident and civil
33 liability for any damages caused by the failure to release the footage
34 in a timely manner.

35 5. Reports. No later than one year after the effective date of this
36 section, and annually thereafter, the secretary of state shall prepare
37 and submit a report to the governor and the legislature detailing
38 compliance with this section and challenges experienced by both New York
39 state law enforcement agencies and persons, firms, or corporations doing
40 business in this state resulting from the requirements of this section.

41 § 3. This act shall take effect immediately.